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Case Number: 25NNCV07425 Hearing Date: July 31, 2026 Dept: D

TENTATIVE RULING

Calendar: 6

Date: July 31, 2026

Case No: 25NNCV07425 Trial Date: October 18, 2027

Case Name: Podkowski v. City of Glendale, et al.

MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

[CCP § 877]

Moving Party: Defendant, Viola Plaza Homeowners Association

Responding Party: Defendant, City of Glendale

RELIEF REQUESTED:

An order determining that the settlement entered into between Defendant Viola Plaza Homeowners Association and Plaintiff Richard John Podkowski was made in good faith.

CAUSES OF ACTION: from Complaint

1) Dangerous Condition of Public Property

2) Negligence – Premises Liability

SUMMARY OF FACTS:

This action arises from a trip-and-fall incident that occurred on April 13, 2025, in which Richard John Podkowski ("Plaintiff"), alleges he sustained severe injuries, including a traumatic brain injury, after stepping off a sidewalk into a depression in the adjacent grass parkway and subsequently tripping on an uneven sidewalk edge located at 239 Stocker Street in Glendale, California. The Complaint asserts that various defendants, including the City of Glendale (the "City") and Viola Plaza Homeowners Association ("Viola Plaza") owned, controlled, maintained, or otherwise were responsible for the condition of the sidewalk and adjacent parkway.

ANALYSIS:

Procedural

Viola Plaza failed to properly serve this motion on the City when it was filed. However, having filed an opposition that addresses the merits of the motion, the Court finds that the City has waived any objection to statutory notice deficiencies. (Carlton v. Quint¿(2000) 77 Cal.App.4th 690, 697, quoting¿Tate v. Superior Court¿(1975) 45 Cal.App.3d 925, 930 [An "opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion."]; Accord De Luca v. Board of¿Sup'rs¿of Los Angeles County¿(1955) 134 Cal.App.2d 606, 609.)¿Accordingly, the Court will consider the merits of the instant motion in its discretion.

Substantive

On noticed motion, "[a]ny party to an action wherein it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff . . . and one or more alleged tortfeasors or co-obligors . . . ." (CCP, § 877.6, subd. (a)(1).) "A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (CCP, § 877.6, subd. (c).) Although a determination that a settlement was in good faith does not discharge any other party from liability, "it shall reduce the claims against the others in the amount stipulated" by the settlement. (CCP, § 877, subd. (a).)

Section 877.6 requires "that the courts review [settlement] agreements made under its aegis to ensure that the settlements appropriately balance the . . . statute's dual objectives" (i.e., providing an "equitable sharing of costs among the parties at fault" and encouraging parties to resolve their disputes by way of settlement. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates¿(1985) 38 Cal.3d 488, 494.) In Tech-Bilt, the court set forth the factors to consider when determining whether a settlement is made in good faith. The Tech-Bilt factors are: (1) a rough approximation of plaintiff's total recovery and the settlor's proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; and (6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of the non-settling defendants. (Tech-Bilt, supra, 38 Cal.3d at pp. 498-501.) Not every factor will apply in every case. (Dole Food Co., Inc. v. Sup.Ct. (2015) 242 Cal.4th 894, 909.)

"The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far 'out of the ballpark' in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a 'settlement made in good faith' within the terms of section 877.6." (Tech-Bilt, supra, 38 Cal.3d at pp. 499-500.)

Defendant Viola Plaza moves to have the Court determine that the proposed settlement agreement between Plaintiff and Viola Plaza was entered into in good faith. The key settlement terms are as follows: Plaintiff has agreed to release Viola Plaza from all claims arising out of or related to the subject incident in exchange for a settlement payment of $225,000.00. In accordance with the terms of the proposed settlement, Plaintiff will dismiss with prejudice all claims against Viola Plaza.

The Court finds that the factors set forth in Tech-Bilt have been met for the current case.

Viola Plaza asserts that the subject incident occurred on a public sidewalk and adjacent parkway, the ownership, control, and maintenance of which are primarily the responsibility of the City. (Mot., p. 8:23-25.) Viola Plaza asserts that it neither constructed nor altered the subject sidewalk, and it did not create the allegedly dangerous condition, including the jagged sidewalk edge. (Mot., p. 8:25-26.) To the extent Plaintiff alleges a depression in the grass parkway contributed to the incident, Viola Plaza disputes that it had any duty to repair or remedy such condition, or that it had actual or constructive notice. (Mot., p. 8:28.)

In the opposition, the City argues that the proposed settlement amount is disproportionate to Viola Plaza's proportionate liability. The City notes that Plaintiff claims to have incurred past medical bills in the amount of $489,000.00 and claims lost income of $2,066.31. (Opp., p. 5:25-27; FROG, No. 8.7) Plaintiff also alleges damages for future medical treatment. (Opp., p. 5:25-27.) In addition, the City argues that a broken pipe on Viola Plaza's condominium property likely caused the parkway to sink. (Opp., p. 6:1-2.)

Taking these factors into consideration, the Court still does not conclude that the settlement amount is so far out of the ballpark as to indicate bad faith. The amount of $225,000.00 is not an insignificant sum and it represents close to 50% of Plaintiff's demonstrated medical bills and lost income. (FROG, No. 8.7) Any future medical bills or other damages are speculative at this stage. Practical considerations require that the evaluation of whether a settlement figure is proportionate to the settling party's liability be made based on the information available at the time of settlement. (Tech-Bilt, supra, 38 Cal.3d at p. 499.)

The City further argues that the settlement amount does not adequately account for Viola Plaza's potential liability for indemnity to the City. (Opp., pp. 6:15-7:19.) The City relies on TSI Seismic Tenant Space, Inc. v. Superior Court (2007) 149 Cal.App.4th 159 and Long Beach Memorial Medical Center v. Superior Court (2009) 172 Cal.App.4th 865 for their argument that the settlement here unjustifiably eliminates their equitable indemnity claim. However, those cases are readily distinguishable from the circumstances here. In TSI Seismic Tenant Space, the proposed settlement amount represented only 0.8% of the damages for which the settling defendant was allegedly responsible. (TSI Seismic Tenant Space, Inc., supra 149 Cal.App.4th at p. 167.) In Long Beach, the settling defendant's settlement represented only 2% of the plaintiff's estimated damages. (Long Beach, supra, 172 Cal.App.4th at p. 873.) The disproportionally low settlement amounts in those cases were strong indicators that the true value in the settlement was dismissal of the indemnity claims, rather than dismissal of the claims as to the settling defendants. In contrast, here, Plaintiff currently has calculated damages of $491,066.31 and Viola Plaza has offered $225,000.00 in settlement. This situation does not warrant an inference that the settlement was made in bad faith.

Thus, the Court finds that the proposed settlement of $225,000.00 represents a reasonable compromise in light of Plaintiff's alleged significant injuries and Viola Plaza's potential proportionate liability arising from its alleged responsibility for the the parkway adjacent to the public sidewalk, where the sidewalk is owned and controlled by the City.

Regarding the third Tech-Bilt factor, the entire $225,000.00 in settlement proceeds is to be paid to Plaintiff as there is only one Plaintiff in this action.

The fourth Tech-Bilt factor, recognizing that a settlor should pay less in settlement than he would if he were found liable after a trial, weighs in Viola Plaza's favor as well because $225,000.00 is likely less than the cost of litigating this action through trial should trial conclude in an unfavorable result for Viola Plaza.

As to the fifth Tech-Bilt factor, the financial condition and insurance policy limits of the settling party, the City argues that because Viola Plaza is silent on this factor in the motion, the motion should be denied. (Mot., p. 6:6-12.) In the reply, Viola Plaza discloses that the applicable policy limits in this matter are $2 million per occurrence. (Reply, p. 8:4-5.) A settling defendant is not required to settle for the full amount of its available policy limits as a condition of obtaining a good faith settlement determination. Considering the totality of the relevant factors, here, the potential availability of additional insurance proceeds alone does not establish that the settlement was entered into in bad faith.

Lastly, as to the other Tech-Bilt factors, there are no allegations of collusion, fraud or tortious conduct. (Mot., p. 10:6-9.)

Upon review of the settlement agreement and in consideration of the factors set forth in Tech-Bilt, the Court concludes that the settlement was entered into in good faith. The motion is GRANTED.

RULING:

Defendant Viola Plaza Homeowners Association's Motion is GRANTED.

Objections:

The City of Glendale's objection to Plaintiff's Memorandum of Points & Authorities in Support of Viola Plaza Homeowners Association's Motion for Determination of Good Faith Settlement is GRANTED. There is no authority for such a pleading, and the Court does not consider it.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.